

Court No. - 3

Case :- WRIT - C No. - 9426 of 2024

Petitioner :- Munna Lal

Respondent :- State Of Up And 5 Others

Counsel for Petitioner :- Girraj Singh

Counsel for Respondent :- C.S.C.

Hon'ble Anjani Kumar Mishra,J.

Hon'ble Jayant Banerji,J.

1. Prima facie, the main contesting respondents in the writ petition are respondent nos. 3 and 4 but notice have not been served upon them.
2. Put up this matter as fresh after ten days.
3. In the meantime, counsel for the petitioner shall serve a copy of this writ petition on the respondent nos. 3 and 4 and produce receipt of the same on the next date of listing.

Order Date :- 20.3.2024

A. V. Singh

Court No. - 21

Case :- WRIT - C No. - 9426 of 2024

Petitioner :- Munna Lal

Respondent :- State Of Up And 5 Others

Counsel for Petitioner :- Girraj Singh

Counsel for Respondent :- C.S.C.,Paras Nath Rai

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. From the instructions produced by Shri P.N. Rai, learned counsel for the respondent-Electricity Department, it does not appear that any order of assessment was passed after following the procedure prescribed under the U.P. Electricity Supply Code, 2005.
2. We direct the respondent no.4 to file his personal affidavit after examining the aforesaid aspects.
3. List as fresh on **16.04.2024**.
4. When the matter is listed next, name of Shri P.N. Rai shall be shown as counsel for the respondent-Electricity Department.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 29.3.2024

Ankit.

Court No. - 21

Case :- WRIT - C No. - 9426 of 2024

Petitioner :- Munna Lal

Respondent :- State Of Up And 5 Others

Counsel for Petitioner :- Girraj Singh

Counsel for Respondent :- C.S.C.,Paras Nath Rai

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. The instant petition has been filed praying for a writ of *mandamus* restraining respondent no.4 from recovering any amount from the petitioner against ten years old electricity bills, as per orders of Hon'ble Supreme Court and to decide the representation of the petitioner.

2. The case of the petitioner is that he had taken electricity connection in the year 2008. On 21.08.2018, respondent no.4 disconnected the electricity supply to the petitioner's premises showing Rs.19,817/- and Rs.46,059/- as the amounts due against him. The petitioner had obtained IGRS online report from respondent no.4 on 28.02.2023 in which the amount shown to be recoverable is Rs.86,775/-. The petitioner relies on the judgement of Supreme Court in **M/S Prem Cottex vs. Uttar Harayana Bijli Vitran Nigam Limited and Others reported in (2021) 20 SCC 200** in support of the contention that electricity dues for period beyond two years is not recoverable in view of the bar contained under Section 56(2) of the Electricity Act, 2003.

3. Learned counsel for respondent-Electricity Department, Shri P.N. Rai has filed counter affidavit on behalf of respondent no.4 in which it is stated that the electricity supply to the petitioner's premises was temporarily disconnected on 17.10.2017 as Rs.12817/- was due against him. It is also stated that there was a checking at the petitioner's premises and he was found extracting electric energy illegally on 19.08.2018. On basis of the said checking report, a notice of provisional assessment was issued to him. It is also stated that when the petitioner did not respond to the said notice, the respondents issued a notice of recovery. Shri P.N. Rai admits that till date, no final assessment order has been passed against the petitioner. He has not provided any assistance to us on the legal submission that the recovery is barred in view of Section

56(2) of the Electricity Act, 2003.

4. It is evident from the rival contentions that there are two aspects. One is regarding arrears of electricity bills on account of which the electricity supply was disconnected. The enquiry report annexed with the counter affidavit reveals that the respondents have been regularly issuing notices to the petitioner to pay the electricity dues. Even notice under Rule 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 was issued. Therefore, in view of the specific language employed in sub-section (2) of Section 56 that the dues would not become barred by time if the same are being continuously shown as recoverable as arrears of charges for electricity supply, we find no force in the contention.

6. The said aspect has also been considered by the Supreme Court in **Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Limited and Another vs. Rahamatullah Khan @ Rahamjulla reported in (2020) 4 SCC 650** followed by the judgement in **Civil Appeal No.2109-2110 of 2004, K.C. Ninan vs. Kerala State Electricity Board and Others**.

7. In relation to the amount which is sought to be recovered on basis of notice of provisional assessment, Shri P.N. Rai states that the Department is withdrawing the demand raised in this behalf and would provide fresh opportunity to the petitioner to file its objection and whereafter final assessment order would be passed.

8. In view of the above, we dispose of the instant petition with liberty to the respondents to act accordingly and follow the procedure prescribed under the U.P. Electricity Supply Code, 2005 in making fresh assessment. It shall be open to the petitioner to file objection as and when any notice is received by him. The assessment proceedings will be finalized without being influenced by any observation made in the instant order.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.4.2024

Ankit.